IN THE SUPREME COURT OF INDIA

CIVIL ORIGINAL JURISDICTION

Writ Petition (Criminal) Nos. 666-70 of 1992

Vishaka and Others ... Petitioners

versus

State of Rajasthan and Others ... Respondents

JUDGMENT

Hon'ble Chief Justice J.S. Verma · Hon'ble Justice Sujata V. Manohar · Hon'ble Justice B.N. Kirpal

1. This writ petition under Article 32 of the Constitution of India has been filed as a class action by certain social activists and NGOs with the aim of focusing attention towards the societal aberration of sexual harassment of women at the workplace.

2. The immediate cause for filing this petition is the alleged brutal gang rape of a social worker in a village of Rajasthan. The incident reveals the hazards to which a working woman may be exposed and the depravity to which sexual harassment can degenerate.

3. The fundamental rights under Articles 14, 15, 19(1)(g) and 21 of the Constitution, read with the principles laid down in the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) adopted by the United Nations on 18 December 1979, mandate that the right to gender equality is a fundamental human right.

4. In the absence of legislative measures, the Court relies on its powers under Article 32 read with Article 141 to lay down binding guidelines. The decision in Nilabati Behera v. State of Orissa (1993) 2 SCC 746 supports this approach.

5. The Court is also guided by Bandhua Mukti Morcha v. Union of India (1984) 3 SCC 161, which establishes that international conventions and norms can be relied upon to construe domestic law where there is no inconsistency.

6. We accordingly lay down the following guidelines (the 'Vishaka Guidelines') to be observed by all employers, public or private, until appropriate legislation is enacted: (a) duty to prevent sexual harassment; (b) definition of sexual harassment; (c) preventive steps; (d) criminal proceedings; (e) disciplinary action; (f) complaints committee; (g) workers' initiative; (h) awareness.

7. These guidelines shall be binding and shall be treated as the law declared by this Court under Article 141 of the Constitution.

8. Sexual harassment includes such unwelcome sexually determined behaviour as physical contact and advances, demand or request for sexual favours, sexually-coloured remarks, showing

pornography, or any other unwelcome physical, verbal or non-verbal conduct of sexual nature.